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|   |                                                                                                                          | <p>The phrase "under construction" within the insurance context has already been interpreted by the California Supreme Court in <i>TRB Investments, Inc. v. Fireman's Fund Ins. Co.</i> (2006) 40 Cal.4th 19.</p> <p>The property was not under construction at the time either fire was started. In response to Defendant's special interrogatory requesting all facts regarding Plaintiff's contention the property was "in the course of construction," Plaintiff failed to identify any acts which could constitute construction as defined in TRB. (Picker Decl., Ex. F., No. 1.) Plaintiff contacted contractors, took measurements, assessed costs and received estimates, and inspected the property. (Picker Decl., Ex. F., No. 1.)</p> <p>Thus, the burden shifts to Plaintiff to prove there is an issue of material fact regarding whether the property was under construction and, thus, covered by the Policy on the dates of the fires.</p> <p>Plaintiff has failed to meet its burden of showing there is a dispute of material fact.</p> <p>Defendant shall give notice.</p>                                                                                                                                                                                                                               |
| 2 | <p><b>Capital Resource Int'l v. Eplex, Inc.</b></p> <p>2025-01533010<br/>Motion to Set Aside/vacate Default Judgment</p> | <p>Defendants Eplex, Inc. and Sunhwa Lee's Motion to Set Aside Default and Default Judgment is GRANTED in part and DENIED in part. The Motion is GRANTED regarding Defendant Lee and DENIED as to Defendant Eplex, Inc.</p> <p>The Court finds the failure to timely file an answer and thus Defendant Lee's default and default judgment resulted from excusable neglect. "Within the context of Code of Civil Procedure section 473(b) neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error." (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 929.)</p> <p>As an initial matter, Defendant Lee filed this motion on behalf of both defendants. However, except in a small claims proceeding, a corporation cannot represent itself. (<i>Merco Const. Engineers, Inc. v. Mun.Ct. (Sully-Miller Contracting Co.)</i> (1978) 21 Cal.3d 724, 731.) Nor can a non-lawyer representative of the corporation appear on the corporation's behalf as it would be tantamount to the unlicensed practice of law. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284, fn. 5.). Thus, the motion is DENIED as to Defendant Eplex.</p> <p>Defendant Sunhwa Lee is ordered to file an answer (on Lee's behalf) within 10 days.</p> |
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